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CASE #	CASE NAME	HEARING NAME
CVPS2500795	MANSOORI VS WALMART, INC.	MOTION TO COMPEL DEFENDANT VINTAGE ASSOCIATES INC'S FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS SET ONE BY MANSORA MANSOORI

Tentative Ruling: Hearing continued to July 28, 2026 at 8:30 a.m. in Department PS2.

This is a personal injury action. Plaintiff Mansora Mansoori was picking up an order from Walmart, Inc. located at 34500 Monterey Avenue, Palm Desert, California on February 4, 2023. While walking through the parking lot, Plaintiff unexpectedly tripped on a protruding tree stump and fell. Plaintiff sustained injuries.

On January 30, 2025, Plaintiff filed her Complaint against Walmart and developer/property management company, Rothbart Development Corporation. On August 14, 2025, Plaintiff filed a DOE Amendment naming Vintage Associates, Inc. as a co-defendant.

On September 30, 2025, Plaintiff served an initial set of written discovery upon Defendant Vintage Associates, Inc. including Demand for Production of Documents, Form Interrogatories, Special Interrogatories, and Requests for Admission. Defendant provided objection-only responses on January 14, 2026.

Plaintiff now brings the instant motions to compel Defendant Vintage Associates, Inc. to provide further responses to Form Interrogatories, Special Interrogatories, and Requests for Admission. Another motion to compel further responses to the Demand for Production of Documents is set to be heard on June 9, 2026. Plaintiff also seeks monetary sanctions against Defendant for having to bring the instant motions.

In Opposition, Defendant asserts it has provided supplemental responses to all requests at issue making the instant motions moot. Defendant also argues monetary sanctions are not appropriate and the amount requested is excessive and unreasonable.

In Reply, Plaintiff states Defendant provided unverified further responses on the same day Plaintiff's Reply was due (June 1, 2026). Plaintiff argues this means no supplemental responses have been provided yet so the motions are not moot.

Motion to Compel Further Response(s)

Under CCP §§ 2031.310(b)(2), 2030.300(b)(1), 2033.290(b)(1) a motion to compel further responses must be accompanied by a meet and confer declaration. The motions are accompanied by the declaration of Attorney Robert L. Booker II, who sent one email to opposing counsel after receiving the objection-only responses. (Booker Decl. ¶¶8-9.) It does not appear that the parties meaningfully met and conferred about these issues. However, since Defendant has provided supplemental responses, the lack of meet and confer prior to bringing the motions is inconsequential.

Request for Admissions

Pursuant to Cal. Code Civ. Proc. §2033.010, any party may obtain discovery in which any other party must admit "the truth of specified matters of fact, opinion relating to fact or application of law to fact." Requests for admission differ from other forms of discovery because rather than seeking to uncover information, they seek to eliminate the need for proof and set at rests triable issues so they will not have to be tried. (*Muillo v. Superior Court* (2006) 143 Cal. App. 4th 730, 735-736.) A response to a request for admission must contain an admission, denial or statement claiming the inability to admit or deny after a reasonable inquiry. (CCP §2033.220.) The requesting party may

move for an order to compel a further response if the party deems the answer to be evasive or incomplete. (CCP §2033.290(a)(1).)

Defendant asserts it has provided supplemental responses to the requests for admission at issue. In Reply, Plaintiff says Defendant only provided unverified responses which are “tantamount to no responses at all.” (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.)

Plaintiff is correct that unverified responses do not constitute supplemental responses. However, clearly Defendant is willing to provide supplemental responses. One additional opportunity will be granted. Hearing will be continued with the parties ordered to meet and confer about Defendant’s supplemental responses and a notice of withdrawing hearing if verified responses are provided.

Sanctions

As to the issue of sanctions, the Court retains discretion to impose sanctions for the reasonable expenses incurred in bringing a motion to compel, even if the requested discovery is ultimately provided after the motion is filed. (CRC Rule 3.1348(a); *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408–409.)

Defendant appears to have only provided supplemental responses because Plaintiff filed the instant motions. However, since Plaintiff did not make a good faith meet and confer effort prior to bringing the motions, sanctions are not warranted.